

2:00 PM

LINE: 4

24-CIV-03087

DANAE MURRAY VS. GOOGLE, LLC

**DANAE MURRAY
GOOGLE, LLC**

**NATHANIEL MARANWE
FELICIA A DAVIS**

DEFENDANT GOOGLE, LLC'S MOTION FOR TERMINATING SANCTIONS OR, IN THE ALTERNATIVE, MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion for terminating sanctions, or alternatively monetary sanctions, is **DENIED**.

Code of Civil Procedure section 2023.030 identifies the types of discovery sanctions available, including monetary, issue, evidence, and terminating sanctions, but such sanctions must be authorized by the chapter governing the particular discovery method or by a failure to obey a discovery order. Here, Defendant has not identified a specific statutory provision authorizing terminating sanctions. To the extent Defendant argues that Plaintiff failed to comply with a court order compelling further discovery responses, the record does not support that assertion. Defendant relies on the minutes from the Informal Discovery Conferences held on October 27, 2025, and December 1, 2025, but those minutes reflect only the parties' informal agreement; they do not constitute a court order compelling discovery.

2:00 PM

LINE: 5

24-CIV-03114

TIFFANY BARNETT VS. LAUREN TALIVAA, ET AL

TIFFANY BARNETT
LAUREN TALIVAA

MATTHEW MATERN
MICHELLE FREEMAN

DEFENDANT SOUTHWEST AIRLINES CO.'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET FOUR AND FORM INTERROGATORY NO. 12.3

TENTATIVE RULING:

For the reasons stated below, Defendant Southwest Airlines Co.'s motion to compel further responses to Request for Production, Set Four, No. 69, and Form Interrogatory—General, Set One, No. 12.3, is **DENIED**.

California's work-product doctrine is codified in Code of Civil Procedure section 2018.030, which establishes two tiers of protection. Subdivision (a) provides absolute protection: "A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (Code Civ. Proc., § 2018.030, subd. (a).) Subdivision (b) provides qualified protection for other attorney work product, making it discoverable only if the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense, or will result in an injustice. (Code Civ. Proc., § 2018.030, subd. (b).) The Legislature's declared policy is to encourage attorneys to prepare their cases thoroughly and to prevent attorneys from taking undue advantage of their adversary's industry and efforts. (Code Civ. Proc., § 2018.020.)

The California Supreme Court addressed the work-product status of attorney-obtained witness statements in *Coito v. Superior Court* (2012) 54 Cal.4th 480. The Court held that "a witness statement obtained through an attorney-directed interview is entitled as a matter of law to at least qualified work product protection." (*Id.* at p. 499.) This baseline protection applies regardless of whether the attorney exercised selectivity in choosing which witnesses to interview because the attorney has expended time and effort identifying and locating each witness, securing the witness's willingness to speak, listening to the witness, and preserving the witness's statement. (*Id.* at p. 496.) By contrast, a statement independently prepared by a witness does not become protected work product merely because it is later transmitted to an attorney. (*Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214.)

Coito held that attorney-prepared witness statements are not automatically entitled to absolute protection as a matter of law; rather, "the applicability of absolute protection must be determined case by case." (*Coito, supra*, 54 Cal.4th at p. 495.) Absolute protection applies when the content of a declaration would reveal the attorney's impressions, conclusions, opinions, legal research, or theories, including where "the questions that the attorney has chosen to ask, or not ask, provide a window into the attorney's theory of the case or the attorney's evaluation of what issues are most important." (*Ibid.*) To invoke absolute protection, the attorney resisting discovery must make a preliminary or foundational showing that disclosure would reveal counsel's impressions, conclusions, opinions, legal research, or theories. (*Id.* at pp. 495–496.) Upon an adequate